

25VECP00063 25VECP00063

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-06-25

Motion: PETITIONER'S MOTION TO SET ASIDE ORDER RECOGNIZING CHANGE OF GENDER AND SEX IDENTIFIER, ALLOW FILING OF PETITION FOR CHANGE OF NAME, JUDICALLY APPROVE ORDER TO SHOW CAUSE ("OSC" NC-120) AND SET OSC HEARING DATE

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Case Number: 25VECP00063 Hearing Date: June 25, 2026 Dept: U

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

In the Matter of: Isaiah Nathaniel Sandoval,

Petitioner

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CASE NO: 25VECP00063

[TENTATIVE] ORDER RE: PETITIONER'S MOTION TO SET ASIDE ORDER RECOGNIZING CHANGE OF GENDER AND SEX IDENTIFIER, ALLOW FILING OF PETITION FOR CHANGE OF NAME, JUDICALLY APPROVE ORDER TO SHOW CAUSE ("OSC" NC-120) AND SET OSC HEARING DATE

Dept. U

8:30 a.m.

June 25, 2026

BACKGROUND

On January 29, 2025, petitioner Isaiah Nathaniel Sandoval (the "Petitioner") filed a petition for order recognizing change of gender and sex identifier and for name change to female and to Marceline Isabel Castillo, respectively. On April 1, 2025, the Court granted the petition.

On May 26, 2026, Petitioner filed a motion to set aside order recognizing change of gender and sex identifier, allow filing of petition for change of name, judicially approve order to show cause and set OSC hearing date.

LEGAL STANDARD

"The court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." Code Civ. Proc., § 473, subd. (b).

DISCUSSION

Petitioner seeks to set aside the April 1, 2025 order granting the petition based on obstacles Petitioner encountered when trying to update Petitioner's birth certificate in Texas. Petitioner indicates that the Texas Department of State Health Services rejected Petitioner's application for a birth certificate name change application on the grounds that the application must be supported by a court order for name change only, and that the person's birth date and birthplace must also be shown on the order. Petitioner seeks to set aside the order and petition again only for a name change.

The Court is unable to grant Petitioner's motion. There is no specific statute for reversing an order granting a name change. The closest available statute the Court could find is Code of Civil Procedure section 473, subdivision (b), which allows for setting aside orders that result from mistake, inadvertence, surprise, or excusable neglect, and such motions must be made within six months of the applicable order. Code Civ. Proc., § 473, subd. (b). The order granting the petition changing Petitioner's name and gender and sex identifier was made more than one year ago, and there is no evidence from Petitioner that the order was the result of mistake, inadvertence, surprise, or excusable neglect. (Order Recognizing Change of Gender and Sex Identifier and for Name Change (4/1/25); see generally, Sandoval decl.) It appears Petitioner must instead use the same petition process as before.

Based on the foregoing, the Court DENIES the motion.

CONCLUSION

The Court DENIES Petitioner's motion to set aside order recognizing change of gender and sex identifier, allow filing of petition for change of name, judicially approve order to show cause and set OSC hearing date.

DATED: June 25, 2026

Yolanda Orozco